

24STCV28213 24STCV28213

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Case Number: 24STCV28213 Hearing Date: July 20, 2026 Dept: 413

TENTATIVE RULING

HEARING DATE: 07/20/2026

CASE NUMBER: 24STCV28213

CASE NAME: CHAD MICHAUD, et al. vs

FCA US, LLC, et al.

MOVING PARTY: Defendant FCA US, LLC

OPPOSING PARTY: Plaintiffs Chad Michaud and Amanda Michaud

PROCEEDING: Motion to compel Discovery Responses to defendant's request for production of documents, set one

RULING SUMMARY: Defendant FCA US, LLC's Motion to Compel Discovery Responses to Defendant's Requests for Production, Set One, is GRANTED.

Verified responses without objections shall be served within 30 days of the date of this Ruling.

A sanction of \$2,260.00 is imposed on Plaintiffs' counsel of record, Larry Chae and Breana Rucker, under Code Civ. Proc. § 2031.300. The sanction is to be paid to Defendants' counsel within 30 days of this Court Ruling.

Background

On October 28, 2024, Plaintiffs Chad Michaud and Amanda Michaud (collectively, “Plaintiffs”) filed their Complaint against Defendants FCA US, LLC (“FCA”) and AutoNation Chrysler Dodge Jeep Ram Valencia (“AutoNation” and, collectively, “Defendants”), alleging causes of action for (1) Violation of Subdivision (d) of Civ. Code § 1793.2 against FCA; (2) Violation of Subdivision (b) of Civ. Code § 1793.2 against FCA; (3) Violation of Subdivision (a)(3) of Civ. Code § 1793.2 against FCA; (4) Breach of the Implied Warranty of Merchantability (Civ. Code §§ 1791.1, 1794, 1795.5) against FCA; (5) Negligent Repair against AutoNation; and (6) Fraudulent Inducement – Concealment against FCA.

Plaintiffs allege that, on or about December 31, 2026, they entered into a warranty contract with FCA regarding a 2017 Ram 2500 with vehicle identification number 3C6UR5NLXH539764 (the “Subject Vehicle”), manufactured or distributed by FCA; the warranty contract included various warranties; defects and nonconformities o warranty manifested themselves within the applicable express warranty period, including but not limited to an engine defect; FCA had a duty to promptly offer to repurchase or replace the Subject Vehicle at the time it failed to conform the Subject Vehicle to the terms of the express warranty after a reasonable number of repair attempts; and FCA did not do so. Regarding AutoNation, Plaintiffs allege negligent repair of the Subject Vehicle.

On December 10, 2024, AutoNation filed its Answer. On June 17, 2026, FCA filed its Answer.

On May 28, 2026, FCA filed this Motion to Compel Discovery Responses. No Opposition was filed.

LEGAL STANDARD

Code of Civil Procedure section 2031.300 provides that a party may bring a motion to compel responses to a request for production of documents, where the responding party failed to serve a timely response. Unless otherwise agreed, the responding party is required to serve responses within 30 days after service of

the demand for production of documents. (Code Civ. Proc. § 2031.260(a).)

If the responding party fails to serve a timely response,

the party “waives any objection to the demand, including one based on privilege or on the protection for work product . . .” (Code Civ. Proc. § 2031.300(a).)

The requesting party need not demonstrate “good cause to compel responses or satisfaction of the “meet and confer” requirement. (Sinaiko, Healthcare Consulting, Inc. v. Pacific Healthcare Consultants, (2007) 143 Cal.App.4th 390, 404.)

DISCUSSION

FCA asserts that Plaintiffs have failed to provide verified responses in this matter. FCA argues that it has a statutory right to conduct discovery and that Plaintiffs should be ordered to provide verified responses.

“The party to whom the demand for inspection, copying, testing, or sampling is directed shall sign the response under oath unless the response contains only objections.” (Code Civ. Proc. § 2031.250(a).) “The attorney for the responding party shall sign any responses that contain an objection.” (Id., subd. (c).)

Here, Plaintiffs’ responses include both objections and answers. (See Exh. B.) While there is an attorney signature on the bottom of the responses, Plaintiffs’ counsel stated that verifications were to follow. (Ibid.) As is, the responses to FCA’s RFPs are unverified.

Responses to requests for production must be verified unless they contain only objections. (Code Civ. Proc. § 2031.250(a).) Unverified responses are tantamount to no responses at all. (Melendrez v. Superior Court (2013) 215 Cal.App.4th 1343, 1348; Appleton v. Superior Court (1988) 206 Cal.App.3d 632, 636 [“Unsworn responses are tantamount to no responses at all”]; Laguna Auto Body v. Farmers Ins. Exchange (1991) 231 Cal.App.3d 481, 489 [unverified discovery responses are not legally valid responses].)

Plaintiffs do not oppose this motion. The Court construes this failure to oppose a motion as a concession of the motion on the merits. (See D.I. Chadbourne, Inc. v. Superior Court (1964) 60 Cal.2d 723, 728, fn. 4 [where nonmoving party fails to oppose a ground for a motion “it is assumed that [nonmoving party] concedes” that ground].)

“Except as provided in subdivision (d), the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc. § 2031.300.)

Here, FCA requests sanctions in the amount of \$2,260.00 to be paid within 30 days of the hearing on this Motion. Plaintiffs have not presented any circumstances that would make the imposition of a monetary sanction unjust.

Accordingly, FCA's Motion to Compel Discovery Responses to Defendant's Requests for Production, Set One, is GRANTED.

Conclusion:

Defendant FCA US, LLC's Motion to Compel Discovery Responses to Defendant's Requests for Production, Set One, is granted. Verified responses without objection shall be served within 30 days of the date of this ruling.

A sanction of \$2,260.00 is imposed on Plaintiffs' counsel of record, Larry Chae and Breana Rucker, under Code of Civil Procedure section 2031.300. The sanction is to be paid to Defendants' counsel within 30 days of this Ruling.

Date: 07/20/2026 _____

William

E. Weinberger

Judge, Los Angeles Superior Court